

On February 5, 2026, the court issued an order granting defendant Amezcua’s motion to consolidate this case with case number 24CV452173, *Magana, et al. v. Amezcua, et al.*

II. LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843). In analyzing motions for summary judgment or adjudication, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294). “[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519). A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2)). If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See *Id.*; see also *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468). Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at 849-50). Therefore, summary judgment or adjudication is granted when, after the Court’s consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); *Villa v. McFarren* (1995) 35 Cal.App.4th 733, 741).

To meet this burden of showing a cause of action cannot be established, a defendant must show not only “that the plaintiff *does not possess* needed evidence” but also that “the plaintiff *cannot reasonably obtain* needed evidence.” (*Aguilar, supra*, 25 Cal.4th at p. 854)(emphasis added). It is insufficient for the defendant to merely point out the absence of evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891). The defendant “must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (*Id.*). The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (*Aguilar, supra*, 25 Cal.4th at p. 855). “Once the defendant. . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2)). The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (*Id.*) “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467).

III. ANALYSIS

A. REQUEST FOR CONTINUANCE

In opposition, Plaintiffs again request a continuance pursuant to Code of Civil Procedure section 437c, subdivision (h). Code of Civil Procedure section 437c, subdivision (h) states, in pertinent part, that, “If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication or both that facts essential to justify opposition may exist but cannot, for reasons stated, then be presented, the court shall deny the motion, or order a continuance to permit affidavits to be obtained or discovery to be had or may make any other order as may be just.”

“To mitigate summary judgment’s harshness, the statute’s drafters included a provision making continuances—which are normally a matter within the broad discretion of trial courts—virtually mandated upon a good faith showing

by affidavit that a continuance is needed to obtain facts essential to justify opposition to the motion.” (*Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 395 (*Bahl*); internal punctuation omitted).

However, “[i]t is not enough to ask for a continuance . . . in opposing points and authorities. The statute requires that the opposition be accompanied by affidavits or declarations showing facts to justify opposition may exist; or that such showing be made by an ex parte motion on or before the date the opposition is due.” (Weil & Brown et al., CAL. PRAC. GUIDE: CIV. PRO. BEFORE TRIAL (The Rutter Group 2020) ¶10:207.10, pp. 10-88 to 10-89). In *Hill v. Physicians & Surgeons Exch.* (1990) 225 Cal.App.3d 1, 7 – 8, the “pleadings contain[ed] no affidavit detailing facts to show the existence of evidence supporting her theory of coverage and the reasons why this evidence could not be presented at the time of the hearing.” “The purpose of the affidavit required by Code of Civil Procedure 437c, subdivision (h) is to inform the court of outstanding discovery which is necessary to resist the summary judgment motion.” (*Scott v. CIBA Vision Corp.* (1995) 38 Cal.App.4th 307, 325 – 326).

The opposing party’s declaration in support of a motion to continue the hearing should show the following:

- Facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion;
- The specific reasons why such evidence cannot be presented at the present time;
- An estimate of the time necessary to obtain such evidence; and
- The specific steps or procedures the opposing party intends to utilize to obtain such evidence. (Weil & Brown et al., CAL. PRAC. GUIDE: CIV. PRO. BEFORE TRIAL (The Rutter Group 2020) ¶10:207.15, p. 10-89 citing Code Civ. Proc., §437c, subd. (h) and *Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 254 (*Cooksey*), et al.).

A declaration in support of a request for continuance under section 437c, subdivision (h) must show: “(1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts. [Citations.]” [Citation.] “The purpose of the affidavit required by Code of Civil Procedure section 437c, subdivision (h) is to inform the court of outstanding discovery which is necessary to resist the summary judgment motion. [Citations.]” [Citation.] “It is not sufficient under the statute merely to indicate further discovery or investigation is contemplated. The statute makes it a condition that the party moving for a continuance show ‘facts essential to justify opposition may exist.’ [Citation.] (*Cooksey, supra*, 123 Cal.App.4th at p. 254).

Where a party requests a continuance under the statute and satisfies its conditions, the determination whether to grant the request is vested in the discretion of the trial court, and will not be disturbed on appeal unless an abuse of discretion appears. (*Knapp v. Doherty* (2004) 123 Cal.App.4th 76, 100 [20 Cal. Rptr. 3d 1]; *Desaigoudar v. Meyercord* (2003) 108 Cal.App.4th 173, 190 [133 Cal. Rptr. 2d 408]). In exercising its discretion, the court may properly consider the extent to which the requesting party’s failure to secure the contemplated evidence more seasonably results from a lack of diligence on his part. (*Desaigoudar v. Meyercord, supra*, 108 Cal.App.4th at p. 190 [“Where a lack of diligence results in a party’s having insufficient information to know if facts essential to justify opposition may exist, and the party is therefore unable to provide the requisite affidavit under Code of Civil Procedure section 437c, subdivision (h), the trial judge may deny the request for continuance of the motion.”]; *Knapp v. Doherty, supra*, 123 Cal.App.4th 76, 102, quoting *FSR Brokerage, Inc. v. Superior Court* (1995) 35 Cal.App.4th 69, 76 [41 Cal. Rptr. 2d 404] [request for discovery properly denied where requesting party offered “ ‘no justification for the failure to have commenced the use of appropriate discovery tools at an earlier date’ ”]; *Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 257 [19 Cal. Rptr. 3d 810] [“majority of courts” have held that “lack of diligence may be a ground for denying a

request for a continuance of a summary judgment motion hearing”]; but see *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 398 [107 Cal. Rptr. 2d 270] [questioning whether diligence plays any proper role in the matter, given absence of any statutory reference to it]. [Footnote.]. (*Rodriguez v. Oto* (2013) 212 Cal.App.4th 1020, 1038 (*Rodriguez*)).

“[T]he court must determine whether the party requesting the continuance has established good cause for it. That determination is within the court’s discretion.” (Weil & Brown et al., CAL. PRAC. GUIDE: CIV. PRO. BEFORE TRIAL (The Rutter Group 2020) ¶10:208, pp. 10-90 to 10-91 citing *Lerma v. County of Orange* (2004) 120 Cal.App.4th 709, 716, et al.). “Usually, the court’s discretion should be exercised in favor of granting a continuance: ‘The interests at stake are too high to sanction the denial of a continuance without a good reason.’” (*Id.* citing *Frazer v. Seely* (2002) 95 Cal.App.4th 627, 634; et al.).

Factors the court may consider in deciding to continue include:

- The length of time the case has been pending. [46 months: Complaint filed 1 July 2022].
- The length of time the requesting party had to oppose the motion. [30 months: MSJ filed 11 December 2023].
- The proximity of the trial date or the 30-day discovery cut-off before trial. [No trial date].
- Whether the continuance motion could have been made earlier.
- Prior continuances for this purpose. [As noted above].
- Whether the evidence sought is “essential” to the issue to be adjudicated. [As set forth in the supporting declaration/ opposition].
- Death or serious illness of an attorney or party is normally good cause for granting a continuance. [Not applicable.] (*Id.* at ¶10:208.1, pp. 10-91 to 10-92).

Here, Plaintiffs’ counsel declares he propounded discovery to defendant Costco seeking documents related to GPS tracking data; that responses to the discovery are “essential” to justify the opposition and support [defendant] Amezcua’s deposition; that responses are past due and defendant has confirmed responses are forthcoming.¹

Attached as Exhibit F to Plaintiffs’ counsel’s declaration is a copy of Plaintiff’s Request for Production of Documents, Set Two to Defendant, Costco Wholesale Corporation (“RPD”). The RPD is dated March 16, 2026 and is accompanied by proof of electronic service on the same date to, among others, defendant Costco’s counsel. By the court’s calculation, responses to this RPD would have been due April 17, 2026.

Attached as Exhibit E to Plaintiffs’ counsel’s declaration is a copy of the deposition transcript for the deposition of defendant Amezcua. The deposition transcript indicates January 8, 2026 as the date of defendant Amezcua’s deposition.

Although Plaintiffs have been unable to depose defendant Amezcua until January 8, 2026, it is the court’s opinion that Plaintiffs could have sought the discovery that they now contend is necessary to fending off defendants’ motion for summary judgment well before defendant Amezcua’s deposition. Plaintiffs have not sufficiently demonstrated that the discovery they have sought is essential to oppose defendants’ motion for summary judgment. This case has been pending for almost four years. Defendant Costco and Reyna’s motion for summary judgment has been pending for more than two and a half years. As detailed above, the court has granted Plaintiffs’ multiple requests for continuances.

In view of these circumstances and findings, Plaintiffs’ request for a further continuance is DENIED.

¹ See ¶2 to the Declaration of Tanner E. Combs in Support of Opposition to Defendant Costco Wholesale Corporation and Ricky Lazaro Reyna’s Motion for Summary Judgment, etc.

B. WRONGFUL DEATH AND NEGLIGENCE

Plaintiffs' complaint asserts causes of action for wrongful death and negligence. "Wrongful death is a statutorily created cause of action for pecuniary loss brought by heirs against a person who causes the death of another by a wrongful act or neglect. It is original in nature and does not represent a right of action that the deceased would have had if the deceased had survived the injury. [Citations.]. It is a cause of action for the heir who recovers for the pecuniary loss suffered on account of the death of the relative. [Citation.] In any action for wrongful death resulting from negligence, the complaint must contain allegations as to all the elements of actionable negligence. [Citation.] Negligence involves the violation of a legal duty imposed by statute, contract or otherwise, by the defendant to the person injured, e.g., the deceased in a wrongful death action." (*Jacoves v. United Merchandising Corp.* (1992) 9 Cal.App.4th 88, 105).

"An action in negligence requires a showing that the defendant owed the plaintiff a legal duty, that the defendant breached the duty, and that the breach was a proximate or legal cause of injuries suffered by the plaintiff." (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 673).

Defendants Costco and Reyna move for summary judgment by arguing, initially, that they did not engage in any negligent conduct. To support this assertion, defendants Costco and Reyna proffer the following facts: At the location of the subject collision, Highway 132 ("SR-132") is a two-lane road with lanes traveling eastbound and westbound.² The center of the roadway is divided by a double-yellow line.³ For the 90 seconds prior to the collision, until 5-10 seconds prior to the collisions, defendant Amezcua's vehicle was behind defendant Reyna's vehicle on the westbound lane of SR-132.⁴ For the 90 seconds prior to the collision, defendant Reyna's vehicle remained in its lane of traffic traveling westbound on SR-132.⁵ For the 90 seconds prior to the collision, defendant Reyna's vehicle was traveling at a speed commensurate with the lane of travel.⁶

In the 90 seconds prior to the collision, until 5 – 10 seconds prior to the collision, defendant Reyna never received any alert, signal or indication that defendant Amezcua intended to overtake the tractor-trailer that defendant Reyna operated.⁷ Defendant Reyna was never aware that defendant Amezcua intended to overtake his vehicle.⁸ At 5-10 seconds prior to the collision, defendant Amezcua attempted to overtake the tractor-trailer operated by defendant Reyna.⁹ In the 5-10 seconds prior to the collision, while attempting to overtake defendant Reyna's vehicle, defendant Amezcua's vehicle crossed the double-yellow lines onto the eastbound lane of SR-132 while traveling Westbound.¹⁰ There was no emergency prior to the incident that would explain why defendant Amezcua's vehicle crossed the double-yellow line.¹¹ Defendant Amezcua's vehicle collided head-on with [Decedents'] vehicle.¹² Defendant Reyna's vehicle never made contact with [Decedent's] vehicle.¹³ Defendant Reyna's vehicle never made contact

² See Separate Statement of Undisputed Material Facts in Support of Motion for Summary Judgment ("Defendants' UMF"), Fact No. 2. The court notes that a number of the facts in Defendants' UMF are based upon statements made in the Declaration of Ricky Lazaro Reyna in Support of Motion for Summary Judgment ("Declaration Reyna") which defendants purportedly served, by electronic mail, on Plaintiffs and defendant Amezcua's counsel on December 11, 2023 according to the Proof of Service Re: Motion For Summary Judgment filed on December 11, 2023. However, in reviewing the court records, the Declaration Reyna was not filed on December 11, 2023. Court records reflect the Declaration Reyna was filed and served February 20, 2024.

³ *Id.*

⁴ See Defendants' UMF, Fact No. 3.

⁵ See Defendants' UMF, Fact No. 4.

⁶ See Defendants' UMF, Fact No. 5.

⁷ See Defendants' UMF, Fact No. 6.

⁸ *Id.*

⁹ See Defendants' UMF, Fact No. 7.

¹⁰ See Defendants' UMF, Fact No. 8.

¹¹ See Defendants' UMF, Fact No. 9.

¹² See Defendants' UMF, Fact No. 10.

¹³ See Defendants' UMF, Fact No. 14.

with defendant Amezcua's vehicle.¹⁴ The investigating law enforcement personnel did not find that defendant Reyna had any role in the subject accident.¹⁵

In opposition, Plaintiffs proffer evidence in conflict with the defendants' evidence, thereby creating a triable issue of material fact with regard to whether defendant Reyna operated his vehicle in a negligent manner. Specifically, defendant Amezcua testified she saw the defendant Costco truck in front of her weaving in the road and "moving to the sides;" in some instances, going over the yellow lines.¹⁶ Defendant Amezcua attempted to pass the [defendant Costco] truck multiple times and she testified the truck prevented her from passing as if "[defendant Reyna] didn't want me to pass it."¹⁷ As defendant Amezcua was attempting to pass the [defendant Costco] semi-truck, the [defendant Costco] truck accelerated and did not let her pass.¹⁸ Defendant Amezcua attempted to pass the [defendant Costco] semi on other attempts before the collision and the [defendant Costco] truck prevented her from making the lane change.¹⁹ In short, the evidence submitted to the court by the parties is in conflict with regard to whether defendant Reyna was operating his vehicle in a manner which was negligent or not.

Defendants Costco and Reyna argue further that even if they were negligent in their conduct, their conduct was not a proximate cause of Plaintiffs' harm. "Causation requires proof that the defendant's conduct was a 'substantial factor' in bringing about the harm to the plaintiff." (*Williams v. Wraxall* (1995) 33 Cal.App.4th 120, 132). "Like breach of duty, causation also is ordinarily a question of fact which cannot be resolved by summary judgment. The issue of causation may be decided as a question of law only if, under undisputed facts, there is no room for a reasonable difference of opinion." (*Kurini v. Hanna & Morton* (1997) 55 Cal.App.4th 853, 864; see also *Capolungo v. Bondi* (1986) 179 Cal.App.3d 346, 354—"the issue of proximate cause ordinarily presents a question of fact. However, it becomes a question of law when the facts of the case permit only one reasonable conclusion.").

Defendants Costco and Reyna again point to the same evidence cited above to argue that there is no evidence defendant Reyna contributed to the accident which led to Decedents' death. However, the evidence submitted by Plaintiffs in opposition is in direct conflict with that submitted by Plaintiffs and creates a triable issue of material fact with regard to whether defendant Reyna's conduct contributed to the accident.

Even if defendants Costco and Reyna were a cause in fact in bringing about Decedents' death, defendants Costco and Reyna contend they should be absolved of liability for public policy reasons.

We have recognized that proximate cause has two aspects. "One is cause in fact. An act is a cause in fact if it is a necessary antecedent of an event." (*Ferguson v. Lieff, Cabraser, Heimann & Bernstein* (2003) 30 Cal.4th 1037, 1045 [135 Cal. Rptr. 2d 46, 69 P.3d 965] (*Ferguson*)). This is sometimes referred to as "but for" causation. (e.g., *Cabral v. Ralphs Grocery Co.* (2011) 51 Cal.4th 764, 784 [122 Cal. Rptr. 3d 313, 248 P.3d 1170].) [Footnote omitted.]

The second aspect of proximate cause "focuses on public policy considerations. Because the purported [factual] causes of an event may be traced back to the dawn of humanity, the law has imposed additional 'limitations on liability other than simple causality.' [Citation.] 'These additional limitations are related not only to the degree of connection between the conduct and the injury, but also with public policy.' [Citation.] Thus, 'proximate cause "is ordinarily concerned, not with the fact of causation, but with the various considerations of policy that limit an actor's responsibility for the

¹⁴ See Defendants' UMF, Fact No. 15.

¹⁵ See Defendants' UMF, Fact No. 16.

¹⁶ See Plaintiffs' Additional Material Facts ("AMF"), Fact No. 1.

¹⁷ See Plaintiffs' AMF, Fact No. 3.

¹⁸ See Plaintiffs' AMF, Fact No. 6.

¹⁹ See Plaintiffs' AFM, Fact No. 7.

consequences of his conduct.” [Citation.]” (*Ferguson, supra*, 30 Cal.4th at p. 1045). As Witkin puts it, “[t]he doctrine of proximate cause limits liability; i.e., in certain situations where the defendant's conduct is an actual cause of the harm, the defendant will nevertheless be absolved because of the manner in which the injury occurred. . . . Rules of legal cause . . . operate to relieve the defendant whose conduct is a cause in fact of the injury, where it would be considered unjust to hold him or her legally responsible.” (6 Witkin, Summary of Cal. Law, *supra*, Torts, § 1186, p. 553)(*State Dept. of State Hospitals v. Superior Court* (2015) 61 Cal.4th 339, 352-353 (*State Dept.*)).

Even so, the Court in *State Dept.* acknowledged, “proximate cause is a question of fact which cannot be decided as a matter of law [unless] the facts are such that the only reasonable conclusion is an absence of causation, the question is one of law, not of fact.” (*Id.* at p. 353). “As a matter of practical necessity, legal responsibility must be limited to those causes which are so close to the result, or of such significance as causes, that the law is justified in making the defendant pay.” (*Modisette v. Apple Inc.* (2018) 30 Cal.App.5th 136, 154).

Defendants contend here that defendant Reyna’s conduct did not directly put Decedent in danger again relying on the proffered evidence that defendant Reyna made no contact with Decedent’s vehicle or defendant Amezcua’s vehicle; defendant Reyna did not leave his lane; defendant Reyna was not driving too slowly; and defendant Amezcua made the decision to cross into oncoming traffic in an attempt to overtake defendant Reyna. If these were the only undisputed facts at issue, the court might possibly consider making a determination of proximate cause as a matter of law. However, that is not the case here as Plaintiffs have proffered evidence placing into dispute the extent of defendant Reyna’s conduct. Proximate cause is not a question of law under these circumstances.

Finally, assuming *arguendo* that their conduct was a proximate cause of Decedents’ death, defendants Costco and Reyna argue defendant Amezcua’s conduct is a superseding cause relieving defendants Costco and Reyna from liability.

“A superseding cause is an act of a third person or other force which by its intervention prevents the actor from being liable for harm to another which his antecedent negligence is a substantial factor in bringing about. If the cause is superseding, it relieves the actor from liability whether or not that person's negligence was a substantial factor in bringing about the harm.” (*Brewer v. Teano* (1995) 40 Cal.App.4th 1024, 1031 (*Brewer*); citations and punctuation omitted.).

“ ‘A superseding cause is an act of a third person or other force which by its intervention prevents the actor from being liable for harm to another which his antecedent negligence is a substantial factor in bringing about.’ (Rest.2d Torts, § 440). In California the doctrine requires more than mere negligence on the part of the intervening actor. ‘[T]he fact that an intervening act of a third person is done in a negligent manner does not make it a superseding cause if a reasonable man knowing the situation existing when the act of the third person is done would not regard it as highly extraordinary that the third person so acted or the act is a normal response to a situation created by the defendant's conduct and the manner in which the intervening act is done is not extraordinarily negligent.’ (*Stewart v. Cox* (1961) 55 Cal.2d 857, 863–864 [13 Cal.Rptr. 521, 362 P.2d 345]); (*Douppnik v. General Motors Corp.*, *supra*, 225 Cal.App.3d at p. 863, 275 Cal.Rptr. 715).

However, “[t]hird party negligence which is the immediate cause of an injury may be viewed as a superseding cause when it is so highly extraordinary as to be unforeseeable. (*Landeros v. Flood* (1976) 17 Cal.3d 399, 411 [131 Cal.Rptr. 69, 551 P.2d 389]; *Stewart v. Cox* [*supra*] 55 Cal.2d [at p.] 864 [13 Cal.Rptr. 521, 362 P.2d 345].) ‘The foreseeability required is of the risk of harm, not of the particular intervening act. In other words, the defendant may be liable if his conduct was “a substantial factor” in bringing about the harm, though he neither foresaw nor should have foreseen the extent of the harm

or the manner in which it occurred.’ (6 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 976, p. 367). It must appear that the intervening act has produced ‘harm of a kind and degree so far beyond the risk the original tortfeasor should have foreseen that the law deems it unfair to hold him responsible.’ (*Soule v. General Motors Corp.*, *supra*, 8 Cal.4th at p. 573, fn. 9 [34 Cal.Rptr.2d 607, 882 P.2d 298]).” (*Torres v. Xomox Corp.* (1996) 49 Cal.App.4th 1, 18–19, 56 Cal.Rptr.2d 455.)(*Perez v. VAS S.p.A.* (2010) 188 Cal.App.4th 658, 680–681).

“In many cases, the issue whether an intervening force is superseding or not is a question of fact for the jury to decide. But, like proximate cause generally, it is a matter of law where only one reasonable conclusion may be reached.” (*Brewer, supra*, 40 Cal.App.4th at 1031).

Again, the difficulty presented here for the court is that the facts with regard to what transpired are in dispute. Under these circumstances, the court cannot determine as a matter of law whether defendant Amezcua’s conduct is a superseding cause.

IV. CONCLUSION

Based on the foregoing, Defendants Costco and Reyna’s motion for summary judgment is DENIED. Court will prepare the formal Order.

Calendar Lines # 3-4

Case Name Robert M. Branch et al vs Spacelink Corporation SV et al

Case No. 23CV426924

Motion to Compel (Line #3) and Motion to Compel (Line #4) & Sanctions

I. BACKGROUND

On May 14, 2025, Defendant Spacelink Corporation (Spacelink), filed identical motions to compel special interrogatories (“SPROG”); form interrogatories (“FROG”); and request for production (“RPD”), set one, against five plaintiffs: Anthony Colucci, Robert Branch, Larry Rubin, Sara Fanous, and Rabindra Singh (collectively “Plaintiffs”). The motions to compel regarding plaintiffs Robert Branch, Larry Rubin, and Sara Fanous was unopposed and granted on February 10, 2026, with reservations on the sanctions request. The motions to compel regarding plaintiffs Anthony Colluci (Line # 3) and Rabindra Singh (Line # 4) were continued to today’s hearing date at the request of the party.

Per Code of Civil Procedure section 1005(b) opposition papers were due on May 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Plaintiffs have not filed opposition papers to any of the five motions to compel in this matter.

On May 8, 2026, the parties submitted a joint statement regarding the status of the motions.

The Court has carefully reviewed the following documents: joint statement regarding Spacelink’s motion to compel (totaling 19 pages); Declaration of Robert Bodzin in support of Defendant’s motion to compel response from Rabindra Singh and attached Exhibits A-G (totaling 108 pages); Declaration of Robert Bodzin in support of Defendant’s motion to compel response from Anothony Colucci and attached Exhibits A-G (totaling 109 pages); Declaration of Robert Bodzin in support of Defendant’s motion to compel response from Rabindra Singh and attached Exhibits A-I (totaling 157 page); notice of motion packet for Rabindra Sing (totaling 156 pages);

Defendant's memorandum of points and authorities to compel discovery response from Rabindra Singh (totaling 12 pages); Notice of motion to compel discovery of Anthony Colucci (totaling 5 pages); Memorandum of points and authorities in support of the motion to compel discovery of Anthony Colucci (totaling 12 pages); Declaration of Robert Bodzin in support of Defendant's motion to compel response from Anthony Colucci and attached Exhibits A-G (totaling 152 pages); January 6, 2026 joint statement (totaling 7 pages); Reply in support of Defendant's Motion (totaling 8 pages); and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2017.010:

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.”

For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (*City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 288). Where a party objects or responds inadequately to discovery requests, a motion lies to compel further responses, and that party has the burden to justify the objections or inadequate responses. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to a demand for inspection”]). “A trial court’s determination of a motion to compel discovery is reviewed for abuse of discretion. However, when the facts asserted in support of and in opposition to the motion are in conflict, the trial court’s factual findings will be upheld if they are supported by substantial evidence.” (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 733). “The purpose of the discovery rules is to enhance the truth-seeking function of the litigation process and eliminate trial strategies that focus on gamesmanship and surprise. In other words, the discovery process is designed to make a trial less a game of blindman’s bluff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.” (*Juarez v. Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 389).

A. Procedural Requirements

(1) Timeliness

Code of Civil Procedure section 2030.300, subdivision (c), provides that notice of a motion to compel further responses must be given within 45 days following the service of the verified response, or any supplemental verified response, or by a later date agreed-upon in writing, failing which the propounding party waives any right to compel a further response to the interrogatories. (Code Civ. Proc., § 2030.300, subd. (c); but see *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 134-136 [suggesting that the 45-day deadline does not apply to (i.e., it does not begin to run with service of) objections-only responses; it only applies to responses that are required to be verified]).

The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410).

“Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days[.]” (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)).

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(2) Meet-and-Confer

“A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

(3) Separate Statement

California Rules of Court, rule 3.1345 requires that any motion involving the content of discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for why an order compelling further responses is warranted.

B. Motion to Compel Responses to Further Form and Special Interrogatories

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within thirty (30) days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b).) There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.) Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1).) In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)).

C. Motion to Compel Further Responses to Request for Production of Documents

Code of Civil Procedure section 2031.310(b)(1) sets forth that a motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310(b)(1)). In *Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224, the Court defined “good cause” as a showing that there “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (*Kirkland v. Sup.Ct.* (2002) 95 Cal. App.4th 92, 98).

III. ANALYSIS

On February 6, 2025, Defendant served Plaintiffs Anthony Collucci and Rabindra Singh with SPROG, FROG, and RPD, Set One (Declaration of Bodzin, at p. 3). Defendants granted the plaintiffs an extension to respond, and Plaintiffs responded on March 28, 2025. Defendants assert that the responses were boilerplate objects and deficient and met-and-conferred with Plaintiffs’ counsel on April 10, 2025 and alerted plaintiffs’ counsel that the defense may file a motion to compel and seek sanctions. (*Id.*; Exhibit I). On May 14, 2025, Defendant filed a motion to compel response to SPROG, FROG, and RPD, Set One on Plaintiffs Anthony Colucci and Rabindra Singh. The motion to compel was originally set for February 17, 2026. The parties requested to continue the matter to the present day. Parties met-and-conferred and presented a joint statement on the status of discovery.

Here, the defendants allege that on February 11, 2026, the parties met-and-conferred over video conference and agreed that the plaintiffs would provide *further* verified responses to discovery by April 3, 2026. (Joint Statement, at p 4). The parties submitted a joint statement to this effect and on February 17, at the request of the parties, the Court continued these two motions to the present day.

Defendants assert that Plaintiffs did not provide further amended response by April 3 and violated their agreement. Five days later on April 8, defense counsel notified Plaintiffs' counsel that responses were not timely provided and that the defendants were prejudiced by plaintiffs failure to comply with discovery obligations.

Defendants assert that Plaintiffs did not respond and have yet to serve further verified and code-compliant amended responses. (*Id.*). Defendants allege that Plaintiffs failed to produce any responsive documents to RPD Nos. 2031 and emphasize that the RPD were propounded more than a year ago. (*Id.*, at p. 5). Defendants state that plaintiffs failed to serve a privilege log. (*Id.*). In addition to no responses, defendants assert that plaintiffs' amended discovery responses are deficient FROGs Nos. 12.1 and 17.1; SPROG Nos. 2.4, 8, 18, 28, 30, 31, 32, and 34; and RPD Nos. 5-7, 9-14, 17, 25, and 33. Essentially defense argues that the responses failed to identify all facts, witnesses, and documents to supports a code-compliant response. Defendant asserts in a footnotes that it has not waived its right to bring a motion to compel further responses.

Plaintiffs have not opposed any of the motions to compel for the five plaintiffs, including that of Rabindra Singh and Anthony Colucci presently in front of the Court. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 6, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

In the joint statement, Plaintiffs assert that parties have met-and-conferred and plaintiffs believe that the motions may be rendered moot. However, plaintiffs opposes the defense's characterization of the amended discovery responses. (Joint Statement, at p. 8). Plaintiff admits that it provided untimely responses, but emphasizes that the responses were 20 minutes late on February 3. Plaintiff admits that the initial amended responses were unverified, but emphasizes that verifications were served 15 hours later. (*Id.*). As to privilege logs, plaintiffs assert that no privileged documents are required to be logged and stay that counsel have agreed to long one document. As to RPD, plaintiffs assert that there are only a small number of documents, estimated at 30-40 to produce. "Plaintiffs still intend to produce those documents, hopefully next week and in any event, no later than the hearing on this matter." (*Id.*, at p. 8-9). Plaintiffs apologized for the delay, but emphasizes that the production of document is outside the scope of defendant's pending motions which seeks to compel further discovery responses rather than documents. (*Id.*, at p. 9). Plaintiff also denies that it produced evasive answers to FROGs and SPROGs and asserts that it either did not have the information or knew that defense already possessed the information. (*Id.*).

Here, the Court finds that the motion to compel responses to FROG and SPROGs is MOOT. Defendant filed verified responses prior to the hearing in substantial compliance. Should the defendant seek further responses then a separate motion needs to be filed accompanied by a separate statement.

As for the RPD No. 2-31, no responsive documents have been produced per defense. The Court notes Defendant motion to compel include request for production of documents set one as set forth in Exhibit E (Declaration of Bodzin in support of motion to compel discovery for Anothony Colucci) and Exhibit E (Declaration of Bodzin in support of motion to compel discovery for Rabindra Singh). The Court will GRANT the motion to compel responses to RPD No. 20-31.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290 provides: "(c) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).”

Pursuant to California Code of Civil Procedure section 2030.030, a propounding party may bring a motion for monetary, issue, evidentiary, or terminating sanctions against any party that is engaging in misconduct in the discovery process. “Only two facts are absolutely prerequisite to imposition of a discovery sanction: (1) there must be a failure to comply, and (2) the failure must be wilful [sic].” (*Valencia v. Mendoza* (2024) 103 Cal. App. 5th 427, 447, review denied (Oct. 16, 2024) (citing *Vallbona v. Springer* (1996) 43 Cal. App. 4th 1525, 1545 and *Karlsson v. Ford Motor Co.* (2006) 140 Cal. App. 4th 1202, 1214–15).

Once a discovery motion has been filed, sanctions may still be awarded “even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a)).

Here, Defendants seeks monetary sanctions in the amount of \$2,850.00²⁰ against *each* of the following Plaintiffs: Singh, Branch, Rubin and Fanous and \$3,450.00 against Plaintiff Colucci. In total, Defendants seek \$14,850.00 in sanctions against all five plaintiffs. (Joint Statement 6-7; Declaration of Bodzin in support of motion to compel discovery for Rabindra Singh, at p. 4; Declaration of Bodzin in support of motion to compel discovery for Anthony Colucci, at p. 4).

Defendant seeks sanctions against Plaintiffs for the motion to compel discovery response for Rabindra Singh in the amount of \$2,850.00. Defendant attests to expending a total estimated 9.5 hours at the hourly rate of \$300.00 as follows: 3.8 hours to draft the moving papers for a total of \$1,140.00; 2 hours at the same hourly rate for review and prepare for the work for a total of \$600.00; 3 hours to review and prepare for opposition papers; and the work; \$900.00 for a reply brief²¹; and 0.07 hours to prepare for the hearing for a total of \$210.00. (*Id.*).

Defendant states that \$3,540.00 accounts for attorney’s fees for a total estimated 11.8 hours at the hourly rate of \$300.00 as follows: 5.3hours to draft the moving papers for a total of \$1,590.00; 2 hours at the same hourly rate for review and prepare for the work for a total of \$600.00; 3 hours to review and prepare for opposition papers; and the work; \$900.00 for a reply brief²²; and 1.5 hours to prepare for the hearing for a total of \$450.00. Here, Plaintiffs did not file an opposition brief to any of the motions to compel, thus the requested three hours to review and prepare opposition papers and a reply brief is inapplicable. (*Id.*).

Plaintiffs oppose imposition of sanction asserting that it has not misused the discovery process. (Joint Statement, at p. 9). Plaintiffs deny failing or refusing to respond to discovery, disobeying court orders to provide discovery, or violating statutory meet-and-confer requirements. (*Id.*). Plaintiffs also emphasize that it did not oppose Defendants’ motions to compel and thus claim there is no basis for monetary sanctions. (*Id.*). Plaintiff points to the ongoing efforts to comply with discovery. (*Id.*).

²⁰ On page 7 of the Joint Statement, the requested amount for plaintiff’s Branch, Rubin, Fanous and Singh is listed as “2,2850,” which appears to be a typo based on the Declaration of Bodzin that accompanies the motion the amount sought is “\$2,850.”

²¹Plaintiffs did not file an opposition brief to any of the motions to compel, thus the requested three hours to review and prepare opposition papers and a reply brief is inapplicable.

²² Plaintiffs did not file an opposition brief to any of the motions to compel, thus the requested three hours to review and prepare opposition papers and a reply brief is inapplicable.

Here, based on the failure to produce RPD No. 2-31 and the unopposed motion to compel, the Court will GRANT sanctions. However, based on the straightforward nature of the identical requests for RPD, Set One for Plaintiff Rabindra Singh and Anthony Colucci the court will award a total of 5 hours total (2.5 hours per case) for preparing and filing the motion and appearing for the hearing at the requested rate of \$300.00 per hour. Even if the motion was unopposed, Rule of Court, rule 3.13148(a) allow for sanctions one the motion is filed. The motions to compel pertaining to the five plaintiffs were filed over one year ago and discovery still has not bee produced.

V. CONCLUSION

Based on the foregoing, the motion to compel responses to SPROG and FROG for Anthony Colucci (Line #3) and Rabindra Singh (Line #4) is DENIED deemed MOOT based on Plaintiffs lodging verified responses on February 3, 2026 showing substantial compliance prior to the hearing.

The motion to compel and RPD Nos. 2-31, Set One for Anthony Colucci (Line #3) and Rabindra Singh (Line #4) is GRANTED. Plaintiffs are to provide verified code-compliant responses within fifteen (15) days of the Order. The motions for sanctions is GRANTED in part and DENIED in part. The total requested amount is DENIED.

Plaintiff is ordered to make payment of \$750 in Line #3 and \$750 in Line #4 for Defendant's counsel within fifteen (15) days of the Order.

Moving party to prepare the Order.

Calendar Lines # 5 - 6

Case Name Niraj Gandhi et al vs Matthew Ginsberg et al

Case No. 24CV455059

Motion to Intervene and Expunge Lis Pendens (Line #5) and

Motion for Protective Order and Request for Sanctions (Line #6)

Non-party Rancho Higuera LLC ("Rancho") filed the motions to intervene (line #5) and motion for protective order and request for sanctions (line #6).

MOTION TO INTERVENE (LINE #5)

I. BACKGROUND

On August 6, 2025, non-party Rancho Higuera LLC ("Rancho") filed a motion to intervene and expunge lis pendens under Code of Civil Procedure 405.30.

No opposition papers were filed. Opposition papers were due on May 8, 2026 per Code of Civil Procedure section 1005(b). A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

On May 14, 2026, non-party Rancho Higuera LLC filed a notice of non-opposition to its motion to intervene and filed a proposed Answer.

The Court has carefully reviewed the moving papers: non-party Rancho's notice of motion, memorandum of points and authorities, Declaration of Richard B. Jacobs and attached Exhibit 1-7 and proof of service (totaling 83 pages); and the pleadings. The motion was accompanied by a proof of service indicating overnight delivery and electronic service on August 6, 2025.

II. LEGAL STANDARD

A. LIS PENDENS

Pursuant to Code of Civil Procedure section 405.30: “At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. However, a person who is not a party to the action shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge the notice. Evidence or declarations may be filed with the motion to expunge the notice.” (Code of Civ. Proc. § 405.30).

Upon timely application, the court shall permit a nonparty to intervene in the action or proceedings if either of the following conditions is satisfied:

- (A) A provision of law confers an unconditional right to intervene.
- (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.
- (C) The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both. (Code Civ. Proc. § 387, subd. (d)(1)–(2)).

Pursuant to Code of Civil Procedure section 405.32, “the court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim.” “Unlike other motions, the burden is on the party opposing the motion to expunge—i.e., the claimant-plaintiff—to establish the probable validity of the underlying claim.” (*Howard S. Wright Construction Co. v. Superior Court* (2003) 106 Cal.App.4th 314, 319). “[T]he plaintiff must at least establish a prima facie case. If the defendant makes an appearance, the court must then consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.” (*Ibid.*). “[O]nly ‘a preponderance of the evidence’ will save a lis pendens once a motion to expunge has been properly made.” (*Burger v. Superior Court* (1984) 151 Cal.App.3d 1013, 1019). “If the claimant does plead a real property claim, but the claim pleaded has no evidentiary merit, the lis pendens must be expunged upon motion under [section] 405.32. By expressly distinguishing the concepts of pleading and evidence in this fashion, the statute makes clear that factual merit is also necessary to the maintenance of a lis pendens.” (*Palmer v. Zaklama* (2003) 109 Cal.App.4th 1367, 1377–78).

“A party to an action who asserts a real property claim may record a notice of pendency of action in which that real property claim is alleged.” (Code Civ. Proc., § 405.20; unspecified references are to the Code of Civil Procedure.) “‘Real property claim’ means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property or (b) the use of an easement identified in the pleading, other than an easement obtained pursuant to statute by any regulated public utility.” (Code of Civ. Proc. § 405.4). “In proceedings under this chapter, the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim.” (§ 405.31.) “In proceedings under this chapter, the court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim.” (§ 405.32.) And “[o]nce a notice of pending action has been expunged, the claimant may not record another notice of pending action as to the affected property without leave of the court in which the action is pending.” (§ 405.36.)

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B. LEAVE TO INTERVENE

Code of Civil Procedure section 387(d) provides mandatory intervention upon timely application by a nonparty when either “[a] provision of law confers an unconditional right to intervene or “[t]he person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.”

Section (d)(2) provides permission intervention upon timely application, discretion to “permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.” To establish a direct and immediate interest in the litigation for purposes of permissive intervention, a non-party seeking intervention must show that he or she stands to gain or lose by direct operation of the judgment, even if no specific interest in the property or transaction at issue exists. (*Simpson Redwood Co. v. State of California* (1987) 196 Cal.App.3d 1192, 1201).

A nonparty “shall petition the court for leave to intervene by noticed motion or by ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests.” (Code of Civ. Proc. § 387(c)).

C. JUDICIAL NOTICE

Evidence Code section 452 provides that the court may take judicial notice of “official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States,” “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States,” and “[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code, § 452, subds. (c), (d), and (h).) “Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning.” (*Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374).

Here, nonparty Rancho requests judicial notice of **Exhibit 1:** Grant Deed. Assessor Parcel Number 654-16-006 file stamped June 17, 2025. The Court will grant judicial notice, but does not accept the truth of its contents or accepts particular interpretation its meaning. Rancho seeks judicial notice of **Exhibit 2:** Plaintiff’s Recording of Lis Pendens against Rancho’s property filed December 27, 2024 is granted, but does not accept the truth of its contents or accepts particular interpretation its meaning

III. ANALYSIS

Here, nonparty Rancho seeks leave to intervene to expunge the notice of lis pendens recorded in this matter. Rancho asserts that it is the owner of the property located at Assessor Parcel Number 654-16-006. (Rancho’s motion, at p. 3; Exhibit 1).

Rancho asserts it has an unconditional right to intervene because it has an interest in protecting its property rights. (Rancho’s motion, at p. 3). Essentially, Rancho asserts there is no party currently representing the interest of Rancho in this action who has the same interest in expunging the lis pendens. Rancho claims it has met-and-conferred multiple times with the parties and while defendants have no objection, the plaintiffs refuse to stipulate prior to deposing Rancho as a nonparty. (*Id.*, at p.4; Declaration of Richard Jacobs at p. 6). Rancho argues that the plaintiff attempts to harass Rancho and obtain confidential master gate codes for its property. (Rancho’s motion, at p. 4). Rancho seeks a protective order against the plaintiff (line #5) for attempting to “shortcut the ultimate resolution of the case through discovery rather than a Court ruling” and serve noncompliant deposition notices. (*Id.*; Declaration of Jacobs at p. 6; Exhibit 3--6).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 8, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

Nonparty Rancho has demonstrated an interest relating to the property or transaction that is the subject of the action. As the owner of the property, Rancho is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.

IV. CONCLUSION

Based on the foregoing, the unopposed motion to intervene is GRANTED and expunge lis pendens is GRANTED. Moving party is to prepare the formal Order.

MOTION FOR PROTECTIVE ORDER & REQUEST FOR SANCTIONS (LINE #6)

I. BACKGROUND

On August 11, 2025, non-party Rancho Higuera LLC (“Rancho”) filed a motion for a protective order and request for sanctions in the amount of \$11,430.00 against Plaintiffs’ counsel John H. Domingue and Rossi Domingue LLP. The motion was accompanied by a proof of service indicating overnight delivery and electronic service on August 11, 2025. This motion was filed after the motion to intervene that was filed on August 6, 2025.

The plaintiffs oppose the motion and filed opposition papers on May 8, 2026.

On May 14, 2026, the defendant filed a response in response to the plaintiffs’ opposition.

The Court has carefully reviewed the moving papers: non-party Rancho’s notice of motion, memorandum of points and authorities request for judicial notice, Declaration of Richard B. Jacobs and attached Exhibit 1; Declaration of Ben Eilenberg, and Exhibits 1-4, and proof of service (totaling 100 pages); Plaintiffs’ opposition (totaling 10 pages); Declaration of John F. Domingue in support of Plaintiffs’ opposition and attached Exhibits 1-2 (totaling 19 pages); Rancho’s reply brief (totaling 10 pages).

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2025.420(b), “the court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” The courts have considerable discretion in granting and crafting protective orders. (*Raymond Handling Concepts Corp. v. Superior Court* (1995) 39 Cal.App.4th 584, 588). Section 2031.060 provides that a party can move for a protective order “[w]hen an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information has been demanded.” (Code Civ. Proc., § 2031.060(a)). The court may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense upon a showing of good cause. (*Id.*, § 2031.060(b)). A court may find that justice requires to protect a party from “unwanted annoyance, embarrassment or oppression or undue burden and expense.” (Code Civ. Proc., § 2030.090, subd. (b)). The burden of proof is on the party seeking the protective order to show “good cause” for the order he or she seeks. (*Fairmont Insurance Co. v. Superior Court* (2000) 22 Cal.4th 245, 255). A motion for a protective order “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §

2030.090). “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

Under the Code of Civil Procedure section 1987.1, a court may quash a subpoena entirely or partially, and issue an order to protect parties, witnesses or consumers from unreasonable or oppressive demands including violations of privacy. (Code Civ. Proc., §1987.1; Weil & Brown, Civ. Pro. Before Trial (The Rutter Group 2008) ¶ 8:598. *See also generally* Cal. Prac. Guide: Civ. Trials & Ev. (The Rutter Group 2008) ¶1:91).

However, good cause must be established as “[i]n accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 172; *Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co., supra*, 2 Cal.3d at p. 172). California’s liberal approach to permissible discovery generally has led the courts to resolve any doubt in favor of permitting discovery. (*Id.* at p. 173). In doing so, the courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the nondiscoverable rather than denying discovery of information vital to preparation or presentation of the party’s case or to efficacious settlement of the dispute.” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

III. ANALYSIS

B. REQUEST FOR JUDICIAL NOTICE.

As a nonparty Rancho seeks a protective order from the court to protect third party confidential and sensitive information. (Defendant’s Motion, at p. 12-13). Rancho seeks the following relief: a protective order that the deposition not take place until the motion to intervene is heard; Rancho does not have to provide confidential financial, development, and security information in deposition; and monetary sanctions against the plaintiff’s and their attorneys. (*Id.*, at p. 14).

Plaintiff and Defendants (the “parties”) and Rancho agree that there is a non-exclusive easement record on Rancho’s property (Assessor Parcel Number 654-16-006) for ingress and egress to the property. (Rancho’s motion, at p. 6). When Rancho purchased the property there was a security gate on the property that runs across the easement. (*Id.*). Defendant provided access codes for the gate to Plaintiffs. (*Id.*). Rancho claims that Plaintiff seeks master codes for the gate to reset the codes. (*Id.*). Rancho and Plaintiffs disagree as to whether Plaintiffs should be deed co-owners of the gate, Plaintiffs must control the master codes to the gate, no changes to the gate can be made without Plaintiff’s permission. Rancho offered to remove the gate, but Plaintiff demanded ownership of the gate.

Plaintiffs oppose the motion and asserts that there is a dispute regarding the interference with the use of the property easement. (Plaintiffs’ opposition, at p. 2). Plaintiff and Defendant paid equally for a gate to be constructed across an easement. (*Id.*). Defendant maintains and controls access to ingress and egress through the gate over the easement via an electronic keypad. Defendant interfered with Plaintiff’s rights by refusing to give code access to the gate, which restricts Plaintiffs easement rights. (*Id.*).

Rancho asserts that the plaintiff initially agreed to add Rancho in the case by filing a First Amended Complaint or substituting a DOE. (Rancho’s Motion, at p. 8). However, Rancho refused to give the master security code to a nonowner of the gate. (Declaration of Jacobs). Thereafter, Plaintiff refused to add Rancho as a party and sent deposition notices for Rancho in an effort to obtain the master security code. (Rancho’s motion, at p. 8; Declaration of Jacobs; Exhibit 3). Rancho objected to the depositions on multiple substantive and procedural

grounds. (Rancho's motion, at p. 9; Declaration of Jacobs; Exhibit 4). Plaintiff sent a second deposition notice, which Rancho objected to based on the request for production of the master codes of the security gate. (*Id.*; Exhibit 5-6). Parties met-and-conferred about the depositions and bringing Rancho as a party without success. (*Id.*; Exhibit 7).

Plaintiffs contest Rancho's objections as meritless and asserts that its subpoenas for depositions were valid. (Plaintiffs' opposition, at p. 2). Plaintiffs refute Rancho's objections as a third party witness. (*Id.*). Code of Civil Procedure section 1987.1 allows the court to issue a protective order concerning a subpoena to protect a person from unreasonable or oppressive demands. (*Id.*, at p. 3). The party seeking the protective order bears the burden of making a good cause showing. (*Id.*). Plaintiff argues that Rancho cannot make a good cause showing that section 1987.1 applies. (*Id.*). Further, the plaintiffs emphasize the broad breadth of discovery that may be reasonably calculated to lead to the discovery of admissible evidence. Plaintiff emphasizes that its subpoena seems relevant information concerning the easement, Rancho's ownership of the subject property, and Defendant's interference with the easement including the master code for the gate. (*Id.*). Plaintiffs also asserts that it offered to stipulate to a protective order regarding potentially privacy issues. Plaintiffs argue that Rancho circumvented a valid subpoena for nearly a year. (*Id.*). Plaintiff requests the court to deny the motion for a protective order and sanction Rancho and its counsel in the amount of \$5,112.50. (*Id.*; Declaration of Domingue).

IV. SANCTIONS

Pursuant to California Code of Civil Procedure section 2030.030, a propounding party may bring a motion for monetary, issue, evidentiary, or terminating sanctions against any party that is engaging in misconduct in the discovery process. "Only two facts are absolutely prerequisite to imposition of a discovery sanction: (1) there must be a failure to comply, and (2) the failure must be wilful [sic]." (*Valencia v. Mendoza* (2024) 103 Cal. App. 5th 427, 447, review denied (Oct. 16, 2024) (citing *Vallbona v. Springer* (1996) 43 Cal. App. 4th 1525, 1545 and *Karlsson v. Ford Motor Co.* (2006) 140 Cal. App. 4th 1202, 1214–15).

Pursuant to Code of Civil Procedure section 1987.2, subdivision (a): "in making an order pursuant to motion made under. . . Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive."

Rancho seeks \$11,430.00 against Plaintiffs' and its counsel John H. Domingue and Rossi Domingue LLP for attorney's fees and cost under Code of Civil Procedure section 2030.030 for misuse of discovery. Mr. Jacobs attest that his hourly rate is \$550.00 and estimates spending 20.6 hours total on the motion. He attests to expending 15.6 hours in preparation of the motion and anticipates spending an additional 5 hours reviewing an opposition and preparing a response. Rancho also estimates that filing fees and motion reservation costs will amount to \$100.00. Here, no opposition was filed, thus the additional 5 hours requested is not at issue.

In opposition, the plaintiffs assert that Rancho's motion for a protective order and sanctions lack merit. (Plaintiffs' opposition, at p. 7-8). Plaintiff asserts that its subpoenas for deposition were proper and seeks to find discovery of admissible evidence and information of material facts at issue. Thus, under section 1987.2(a), Rancho cannot just substantial justification for seeking a protective order. (*Id.*). Thus, the plaintiffs request denying Rancho's motion for a protective order and sanctions. (*Id.*). For these same reasons, plaintiffs seeks sanctions in the amount of \$5,112.50 against Rancho and its counsel on the grounds it expended attorney's cost and fees for defending against a meritless motion. (*Id.*).

Here, the Court finds that parties are in genuine dispute over material facts. The Court does not find that Rancho makes a showing that the plaintiff failed to comply with discovery and that the failure was willful pursuant to section 2030.030. The easement of the gate and its codes are in dispute. As for the plaintiffs' request for sanctions under section 1987.1, the Court does not find that the motion was made in bad faith or without substantial justification.

V. CONCLUSION

Based on the foregoing, and in light of the court's ruling in Rancho's motion to intervene, that was granted, the court finds the motion for protective order as MOOT. The request for sanctions by Rancho and plaintiffs are DENIED. Moving party to prepare the formal Order.

Calendar Line # 7

Case Name Cavalry Spv I, Llc vs Gisela Rosas-Deciga

Case No. 25CV457476

Motion: Admissions Deemed Admitted

Before the court is Plaintiff Cavalry Spv I, Llc's ("Cavalry") motion for requests for admissions ("RFA") to be deemed admitted against Defendant Giesela Rosas-Deciga that was filed on September 30, 2025. The motion was accompanied by a proof of service indicating mail service on September 30, 2025.

No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 8, 2026.

I. BACKGROUND

The Court has carefully reviewed Plaintiff's moving papers including, notice of motion (totaling 2 pages), memorandum of points and authorities (totaling 3 pages), Declaration of Nordin Dhaliwal in support of Plaintiff's motion and attached Exhibits A-C (totaling 26 pages); proof of service, (totaling 2 pages); and the pleadings.

II. LEGAL STANDARD

Pursuant to California Code of Civil Procedure sections 2033.280:

"If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

- (a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.
- (b) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).
- (c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280).

III. ANALYSIS

On June 27, 2025, Plaintiff served Defendant Rosas-Deciga with RFA, Set One, that contained 11 RFA on the via mail delivery (Declaration of Dhaliwal and Exhibit A). Per Plaintiff, responses were due on August 1, 2025 (*Id.*). Plaintiff did not receive any responses on that date and has not received responses as of filing the motion. The Court was not provided with any further updates on responses prior to this hearing date. On September 30, 2025, Plaintiffs filed this motion to deem RFA admitted.

Absent substantial compliance *prior* to the hearing date, the defendant is entitled to an order deeming the truth of the matter specified and requests that all RFA is deemed admitted. Here, Defendant has not served any responses. Verified responses were due over a year ago, on August 1, 2025. No discussions on extensions or substantial compliance prior to the hearing was provided.

Per Code of Civil Procedure section 1005(b) opposition papers were due on May 8, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Moving party meets its burden of proof.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2033.280(c), the Court *shall* impose monetary sanctions for failure to timely respond to requests for admission unless the party acted with substantial justification, or the circumstances render imposition of sanctions unjust. The Court must impose a monetary sanction on the party or attorney whose failure to serve timely Requests for Admission responses necessitated the motion.

Plaintiff does not seek any sanctions. No motion for cost or fees were submitted. The Court will exercise its discretion and not impose sanctions.

V. CONCLUSION

Based on foregoing, Plaintiff's unopposed motion to deem RFA, set one is GRANTED.
Moving party to prepare the formal Order.

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